



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

OCT 26 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12367

EXPIRATION DATE: November 30, 1999

1. GRANTEE: Airgas - Nor Pac, Inc.
Portland, Oregon
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of anhydrous ammonia in a DOT Specification 4AA480 cylinder that developed a leak. The cylinder is equipped with an ammonia emergency "B-Kit" to prevent further leakage during transportation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.24(b).
5. BASIS: This emergency exemption is based on the application of Airgas - Nor Pac, Inc., dated October 22, 1999, submitted in accordance with § 107.117 and a determination that it is necessary for the protection of life and the environment.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	n/a

7. SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 4AA480 cylinder which developed a leak. The cylinder is equipped with an emergency "B-Kit" to prevent leakage during transportation.

continuation of DOT-E 12367

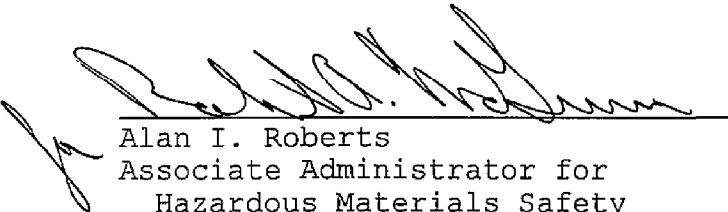
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- b. The cylinder must be braced and blocked to prevent movement during transportation.
8. SPECIAL PROVISIONS: The cylinder will be transported by private carrier from Salem, Oregon to Pasco, Washington.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the cylinder covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.
- Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.
- No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.
12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS,

in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

OCT 26 1999


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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